

Court No. - 2

Case :- WRIT - C No. - 42825 of 2011

Petitioner :- Dr. Mohd. Israr

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Syed Wajid Ali

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Ashok Bhushan, J.

Hon'ble Bharati Sapru, J.

Heard learned counsel for the petitioner and Shri Pankaj Kumar Shukla appearing for respondents no. 1 to 3. No notice is being issued to the respondent no. 4 in view of the order passed today.

The petitioner's case in the writ petition is that he is tenant of the respondent no.4 who has refused to give Electricity Supply to the petitioner.

Petitioner's case is that he has submitted the application to the respondents on 9.5.2011.

Learned counsel for the respondents submits that the petitioner's application will be decided in accordance with the provisions of U.P. Electricity Supply Code 2005. He further submits that the corporation shall consider the application of the petitioner in accordance with the priority as fixed by various circulars.

In view of the aforesaid, we are of the view that subject to the fulfillment of the conditions as prescribed under the U.P. Electricity Supply Code 2005, the application of the petitioner may be considered and disposed of in accordance with the law.

With the above observation, the writ petition is disposed of finally.

Order Date :- 1.8.2011

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